

HACIENDA DE ESTRELLAS HOMEOWNERS ASSOCIATION

HACIENDA de ESTRELLA BOARD APPROVED RULES

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RULES FOR COMMON AREAS/ASSOCIATION PROPERTY

References: Sections 1.10, 2.01(a), 3.07, 13.06a and 8.02 of the CC&Rs

1. Intentional damage to Association property- A homeowner is subject to penalties if a homeowner, a family member of the homeowner, or guest of the homeowner is responsible for intentional damage to Association property. In regard to entrance gates this includes tampering with, damage to and disassembling of gate hardware. Said homeowner shall attend a disciplinary hearing. Nothing in this section is intended to prevent the Association from recovering costs for property damage caused through neglect or accident by any person.

2. Violation of posted rules within the Association- Violation of posted rules, such as pool and traffic rules, may be cause to attend a disciplinary hearing.

3. Risk management- Unless specifically covered by the Association's liability policy, no person with professional standing may use Association property to conduct, or cause to be conducted, any training, sport, or competition within the person's profession, regardless of compensation.

4. Pedestrian and traffic safety- The Board finds that foliage growing on and over the streets result in visual obstructions, hazards to pedestrians and vehicles, reduces the available roadway width for both and makes it difficult to clean and maintain the roads. Homeowners are responsible to trim and cut foliage to eliminate the encroachment onto the roadway or over the roadway to a height of twelve feet above the street level. When a homeowner fails or refuses to trim and cut foliage as set forth herein, the Association shall have the right to correct the condition. Any cost of such action shall be recovered through imposition of a Special Individual Assessment against the Homeowner.

5. Maintenance of Association property- Homeowner maintenance responsibility for Association property located adjacent to the homeowner's property, as defined in Rule 6, includes maintenance, debris removal and includes the maintenance of drainage ditches and areas where drainage water flows to the roads. Homeowners are also responsible for keeping the edge/curb of the roads in front of their property free of debris and dirt.

6. Applicability- In determining the applicability of rules 4 and 5, the homeowner's maintenance responsibility includes the Association property, which extends from the pavement edge, or curb, to the property marker located approximately ten feet from the edge of the road. This property is referred to as "Exclusive Use Common Area" by the Civil Code and the responsibility for maintenance by the lot owner is also defined in the Civil Code.

7. Penalties- Violations of the rules are cause for a disciplinary hearing. This hearing may result in fine, repayment of related damage expenses, recovery of costs, temporary loss of use privileges for certain Common Area facilities, or all of these consequences, depending on the

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seriousness of the violation. Homeowner failure to attend such hearing shall not prevent the Board from taking action based on the information and evidence that is available during the hearing. The fine for violation of traffic rules, speed limit and stop sign rules, is a \$100 fine, increasing by \$50 for each subsequent speed limit and stop sign violation. The fine for tampering with, damage to and disassembling of gate hardware is \$250.

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RULES FOR ADMINISTRATIVE APPEALS PROCESS

1. Authority and Purpose. The Covenants Conditions and Restrictions of Hacienda De Estrellas provide for an administrative appeal to certain actions taken by the Board of Directors, by the Architectural Review Committee and other official committees as defined in section 2.

The authority for the administrative appeal is set forth in Article 5, Section 5.14 and in Article 13, Section 13.08 of the C.C.&R.'s.

The Board of Directors of Hacienda De Estrellas has the responsibility to promote and maintain an administrative appeal process that is independent, objective, fair, prompt, and efficient.

2. Definitions.

Affected party means any person recorded as an owner of property within Hacienda De Estrellas.

Agent(s) means the affected party's attorney, consultant, representative, engineer, planner, architect, or any individual with legal authority to represent the appellant's interests.

Appealable action is any action directing or allowing a property owner to perform any act, or restricting or prohibiting the property owner from performing any act, when the Board of Directors, the Architectural Review Committee or any official committee bases such action upon the interpretation and application of the provisions of the C.C.&R.'s.

Official Committee, for purposes of these procedures, means any property owner or group of property owners who have been established by the Board of Directors to conduct business on behalf of the homeowners and who are vested with the authority to allow, compel or prohibit certain actions by the property owners. *Official Committee* does not include informal and advisory groups.

Originating committee. The body, which made the decision that, is being appealed.

Party to the appeal is the property owner who has made the appeal and/or the property owner, on whose behalf the decision being appealed was made, and any agent or representative of these persons.

Request for appeal means any property owner's official request to initiate the appeal process.

3. Actions subject to appeal. Any decision of the Board of Directors, Architectural Review Committee or other Official Committee, which allows or compels an act of a homeowner or prohibits or restricts an action of a homeowner, may be appealed.

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The reason(s) for requesting an appeal must be more than a simple request for appeal because the affected party has a personal dislike for an action. Actions of a property owner, either required or prohibited by statute or government regulation, are generally not appealable.

The appeal may be to compel an action that was denied, to prohibit an action that was approved, or to modify the decision that was taken. Only one appeal may be filed for each denial or revocation. There is no appeal to a decision made on an appeal.

All decisions compelling or prohibiting actions of homeowners shall be open to the public, except appeals pertaining to a violation hearing.

4. Persons with standing to appeal. Any property owner has standing to appeal a decision, regardless to which property or person the original action applied. The person appealing the decision may be represented by an attorney or other representative of his/her choosing.

5. Filing of the appeal. Except as provided in the next paragraph, no appeal shall be considered unless a member of the Board of Directors receives the appeal within 3 days of the action taken, which is the subject of the appeal. The board member shall, without delay, forward the request for appeal to the president of the board.

Any decision that was made during a meeting not announced as required may be appealed within 10 days of the time the affected party learned of the decision, until 45 days after the decision.

The request for the appeal shall be in writing and shall include the name of the affected party, a description of the action being appealed, the reason(s) for the appeal, and any supporting data and information.

6. Scheduling the Appeal Hearing. On receipt of the request for appeal, the president of the Board of Directors will set a date, time and location for the appeal hearing. The date shall be between 5 days and 10 days of receipt of the request for appeal. Ordinarily, the location of the appeal hearing shall be the association clubhouse. A hearing not conducted within the 10 days shall not mean the appeal has prevailed.

7. Conducting of the Appeal.

The president of the board shall conduct the appeal hearing, shall appoint a person to document the hearing and shall open the hearing with a brief overview of the procedures, as set forth herein, for conducting the hearing.

The appeal shall be an informal proceeding, intended to provide clarifications and explanations of the administrative records. Therefore, the proceedings of the conversations will not be recorded verbatim and no verbatim transcripts of the conversations will be made. However, after the appeal hearing a memorandum for the record summarizing the appeal will be made.

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The board will conduct a fair and impartial conference, hear and fully consider all relevant issues and facts, and seek clarification of any issues to allow the board to make a final determination on the merits of the appeal.

The appeal hearing may only be conducted with a quorum of the board.

The sequence of the hearing is informal but will generally conform to the following;

- The notice of the hearing shall be announced, except if the appeal is on a violation hearing.
- The president will convene the hearing in open session.
- The president will then adjourn the meeting to closed session.
- The persons involved in the appeal may be present. Ordinarily this will include the appellant, the property owner to which the original decision applied, and a representative of the committee rendering the decision that is being appealed, if not the Board of Directors.
- Other persons, determined by the president to be appropriate, are authorized to participate in the hearing. Examples include technical experts and consultants who may provide additional information to assist the board in its decision; a representative of the board's property manager and the board's legal representative.
- The board will review all written information pertaining to the original decision and the appeal. Board members may question persons present for clarification of the decision and appeal. All information relevant to the appeal may be discussed during the hearing. However, the discussion shall be limited to issues having a direct bearing on the appeal.
- When the board has received all of the information that it believes is necessary to make a decision, it will deliberate the appeal.
- Except as provided, only the board members, representative of the property manager and the board's legal representative may be present during deliberations.

A board member who is a party to the appeal may not participate in the appeal process as a board member including voting, deliberating, or being present during deliberations. The member may be present at the request of the board only to answer questions.

8. Rendering and Application of the Decision.

A majority vote is required for the appeal to be approved. Otherwise, the decision made by the originating board/committee shall prevail. In the event that an even vote occurs, the appeal did not succeed.

The decision of the board shall be based upon the facts and information presented at the hearing.

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The decision of the board shall be to approve or deny the appeal. If the appeal is denied, there is nothing in this procedure prohibiting the board from negotiating a modification of the original decision.

The Board of Directors may recommend a modification to the original decision and return the matter to the originating committee for review and discussion. In such case the appeal will be continued. If the further review and discussion satisfies each party to the appeal, the appeal may be withdrawn. If consensus between the parties to the appeal is not possible, the board shall make a final decision.

The president will reconvene to open session to announce the decision and adjourn the meeting.

Through mail or personal contact, the president shall notify the parties to the appeal of the board's action.

The decision of the board is final. A person who disagrees with the findings of the board may seek resolution through civil process.

9. When the Board renders a decision that is subject to appeal.

The Board of Directors is the governing element of the association. In the event the board makes the original decision that is appealed, the appeal can only be made back to the board. In such case the board may convene to hear the appeal. Essentially, the board is reviewing and rehearing the information leading to the original decision.

The board may modify its original decision, reverse its decision, or leave the original decision unchanged.

10. Miscellaneous Provisions.

All meetings of the board or committees, wherein a decision is made, shall be based upon a publicized agenda, except for hearings.

The appellant shall be responsible for his own expenses, regardless of the outcome of the appeal.

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FIRE HAZARD MITIGATION POLICY

References: Sections 3.06(b), 7.02, 13.06(c) and 13.06(d) of the CC&Rs

1. Association CC&R's and Board policy require that all Homeowners cut all weeds and tall grass on their lots, cut down and remove dead trees and remove piles of dead vegetation and tree branches, to include the un-landscaped portion of lots, hillsides and backyards and including lots not yet built on, by **June 1st** of each year. This policy also includes the requirement to maintain lots throughout the fire season to be cleared of tall weeds and grass, dead trees, piles of dead vegetation and tree branches if a fire hazard exists. Section 7.02 of the CC&R's does define owner maintenance responsibility, which include reducing the risk of fire.
2. During the first week of May each year, the Board will send a letter to all Homeowners, reminding them of the need to comply. Homeowners that have not complied by **June 1st** and Homeowners, who have not maintained their lots throughout the fire season, if a fire hazard exists, will be sent a letter inviting them to a hearing with the Board for the purpose of assessing a fine and advising the Homeowner that they have until the date of the hearing to comply with the policy. Section 13.06(c) of the CC&Rs allows the Board to impose a fine for the violation and a per diem component for as long as the violation continues.
3. If a Homeowner has not complied with the policy by the date of the hearing, the Board can then exercise the authority granted under Section 3.06(b) of the CC&R's, enter the Homeowners lot with 24 hours notice, perform the work necessary to cut the weeds, tall grass, remove dead vegetation, dead trees and tree branches and bill the Homeowner for the work performed.
4. The Board realizes that the start of the fire season may not be the same each year; however, it is less confusing to have a set date each year for implementation of the policy. The curing of weeds and tall grass will be different each year but our target date for cutting and cleanup needs to be fixed and easily remembered.
5. This policy is in place to encourage voluntary compliance with a requirement of our CC&R's, address the needs of those Homeowners who have expressed their concern in regard to the potential fire hazard that weeds, tall grass, dead trees, piles of dead vegetation and tree branches create, add to the safety of the entire Community by mitigating the potential for a fire that would spread rapidly and lastly to make it easier for the Board to get compliance instead of spending months trying to do so.
6. This policy is in concert with the published procedure for disciplinary hearings even though Section 13.06(d) of the CC&R's gives the Board the authority to take immediate corrective action under certain circumstances; fire hazard being one of those circumstances.
7. The Board of Directors can and should use some discretion in regard to the June 1st date if weather conditions make it appropriate and CDF has moved out the start of the fire season.

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HACIENDA DE ESTRELLAS HOA RULES FOR PARKING AND OPERATION OF VEHICLES

Reference: Section 8.11 of the CC&R's

PARKING RESTRICTIONS

1. No homeowner's vehicle shall be parked or left standing upon any street. Temporary on-street parking is permitted for construction or service vehicles.
2. Mobile homes, motor homes, campers, trailers, boats, utility trailers, inoperable vehicles and commercial vehicles/trailers are not to be parked within the properties, other than within enclosed garages, except for periods not to exceed 48 hours for the purpose of loading, unloading and cleaning.
3. No vehicle offered for sale shall be parked on the streets or in a Homeowner driveway for the expressed purpose of offering it for sale.
4. Vehicles are prohibited from parking within the exclusive use common area adjoining the road unless on an existing paved driveway.
5. Creating additional front yard vehicle parking in unpaved areas is also prohibited.

SPEED LIMIT

1. No person shall drive a vehicle upon any street in Hacienda De Estrellas at a speed greater than 20 miles per hour.
2. Notwithstanding Subsection 1, above, no person shall drive a vehicle upon a street at a speed greater than is reasonable or prudent having due regard for weather, visibility, the traffic on, and the surface and width of, the street, and in no event at a speed which endangers the safety of persons or property.

REQUIRED STOPS

1. The driver of any vehicle approaching a stop sign at the entrance to an intersection in Hacienda De Estrellas shall stop at a limit line, if marked, otherwise before entering the near side of the intersection.
2. The driver of a vehicle approaching an intersection shall yield the right-of-way to any vehicle, which has already entered the intersection from a different street.
3. When two vehicles enter an intersection from different streets at the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on his or her immediate right.

PENALTIES

Failure to comply with these rules will be cause to levy a fine. The fine shall be \$50.00 per violation for parking restrictions and \$100 per violation for speed limit and stop sign violations, increasing by \$50 for each subsequent speed limit and stop sign violation. If accused of any violation subject to a fine, the homeowner shall have the right to a hearing before the Board. Section 13.06 of the CC&R's allows the Board to take immediate disciplinary action, the fine, for these violations. The offending Homeowner may request a hearing in writing within five days of the disciplinary action. Homeowners are responsible for compliance with these rules by their family members, guests, or service persons performing services for the homeowner.

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RULES REGARDING THE RENTAL OF RESIDENCES

Reference: Section 2.03 of the CC&R's

- i. Rental Restriction- As of January 1, 2021 the only rental restriction is that the rental agreement or lease not be for less than 30 days. Civil Code 4741 requires the CC&R's to be changed from not less than 90 days to not less than 30 days.
- ii. Restriction on Tenants- Any rental or lease may only be made to tenants for single-family residential use only and pursuant to a single lease or rental agreement.
- iii. Governing Documents- Hacienda de Estrellas governing documents, CC&R's and all rules of the Association are to be incorporated into a lease or rental agreement by reference to the documents and a copy of the CC&R's and rules are to be given to the renter or lessee. Failure to provide the documents does not relieve the owner of the responsibility for compliance by the tenant.
- iv. Occupant Names- Prior to the renter or lessee moving into a Residence, the Owner shall provide the Association with the name of the renter/lessee and the names of all tenants who will be residing in the Owner's Residence.
- v. Requirement of Professional Management- If the Board of Directors determines that an Owner renting a Residence has provided ineffective oversight of his or her tenants or required maintenance is not being done, the Association may require the Owner to contract for professional management of the rental Residence.

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RULE REGARDING MAILBOXES

Reference: Sections 3.07(a) and 8.05 of the CC&R's.

Section 8.05 restricts signs of any kind displayed on Common Area property but does not specifically identify mailboxes. Since we have had problems with flyers and attachments to mailboxes, the Board is adopting a rule to specifically identify mailboxes in the restriction of Section 8.05. Mailboxes are Common Area property.

Domestic Mail Manual Section 3.25 makes it a violation of Postal Regulations to attach anything to a mailbox. This regulation is inclusive of anything taped or placed on a mailbox.

The following rule is adopted as Association policy by the BOD per Section 3.07(a) of the CC&R's.

1. Neither flyers, notices, advertisements nor any other item shall be attached to any Association mailbox.
2. Homeowners responsible for a violation of the above rule will be assessed a fine per the Association fine schedule by the BOD.

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RULE FOR GATE CODE SECURITY

Reference: Section 3.07(a) of the CC&R's

In the interest of maintaining the security provided by a restricted access gate code to the residents of Hacienda de Estrellas, the Board has enacted the following rules pertaining to the use and dissemination of those codes:

1. The appropriate gate codes shall be given only to members of the homeowner's family, to trusted friends and visitors, and to vendors commissioned by a homeowner to evaluate or perform work.
2. A homeowner shall neither publish or cause to be published any of the gate codes. Publishing includes any method whereby the gate codes are made available to the public, including, but not necessarily limited to, electronic media and print media (including flyers, posters, etc.).
3. A fine of \$250 will be assessed for each violation of the publishing rule.

A homeowner desiring public access for a large event within HdeE should contact a Board member to arrange for the main gate to be held open within a specific time period on the date of the event.

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FINE SCHEDULE

Reference: Sections 2.01, 13.06 and 13.07 of the CC& R's

The Governing Documents allow the Board to adopt a fine schedule to be imposed as a penalty for violations of the Governing Documents or Association Rules. The following is being adopted as the Association fine schedule.

1. Violations of a Governing Document or Rule, except for violations of the fire hazard policy, parking to include RV's, boats and trailers, the traffic rules, tampering with, damage to and disassembling of entrance gate hardware and the gate codes rule, results in a verbal request or letter to the Homeowner requesting compliance within 15 days. The verbal request or letter shall indicate that if the violation is not corrected within 15 days, then a hearing will be held for the purpose of assessing a fine. Some violations are of a nature that immediate corrective action will be requested.
2. If the violation, other than for fire hazard, parking, traffic rules, tampering with, damage to and disassembling of entrance gate hardware and gate code rule violations, is not corrected within 15 days, or immediately if the violation was of a nature that immediate corrective action was requested, a hearing will be held to impose a \$50 fine for the violation, except for fire hazard, parking, traffic rules, tampering with, damage to and disassembling of entrance gate hardware and gate code rule violations, that has not been corrected and advise the homeowner that they have a right to attend.
3. Violations of the fire hazard policy result in a letter advising the Homeowner of a hearing for the purpose of imposing a \$50 fine plus a daily component. Violations of the speed limit and stop sign rules result in a hearing and a \$100 fine, increasing by \$50 for each subsequent speed limit and stop sign violation. Violations of parking restrictions result in a hearing and a \$50 fine on a daily basis. Violation of the gate codes rule results in a hearing and a \$250 fine. Tampering with, damage to and disassembling of entrance gate hardware results in a hearing and a \$250 fine.
4. If the homeowner does not come to the meeting or at the meeting no agreement is reached to correct a violation, then the fine is assessed in perpetuity until a correction is made.
5. If after a reasonable period of time it becomes obvious that the homeowner refuses to neither correct the violation nor pay the fine then the Board can decide to seek legal remedy. Section 13.07 gives a Board that right.

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ASSESSMENT COLLECTION POLICY

1. Regular assessments are due, in advance, on the first (1st) day of each assessment period and delinquent if not received, in full, in the Association office within (15) days after the due date.
2. Special and Special Individual Assessments are due on the date(s) specified upon imposition, and each installment thereof shall be delinquent if not received in the Association office within fifteen (15) days after it is due.
3. A late notice will be sent once any assessment becomes delinquent and a charge of **Ten Dollars (\$10.00) or Ten Percent (10%)** of the delinquent assessment, whichever is greater, shall be due on any delinquent assessment.
4. Interest shall be due on all delinquent amounts, once due and unpaid for thirty (30) days, at the rate of **twelve percent (12%) per annum**.
5. If any portion of any such assessment, late charge, interest or cost of collection remains unpaid sixty (60) days after the original due date thereof, a "Letter of Intent" to file a Notice of Delinquent Assessment ("Lien") will be prepared and sent to the owner(s) of record. The owner(s) will be advised of the right to dispute the amounts owed by submitting a written request to discuss with the Board. The Board will meet with the owner(s) within 30 days of the postmark of the request.
6. All such amounts, and all other assessments and related charges thereafter due to the Association until all such amounts are paid, must be paid in full and the Association shall not be required to accept any partial or installment payments from the date of the institution of an action to enforce the payment of delinquent amounts to the time that all such amounts are paid in full.
7. If all such amounts have not been received ninety (90) days after the original due date thereof, a Lien will be prepared and recorded as to the delinquent property and the owner(s) thereof, and all resulting collection fees and costs will be added to the total delinquent amount.
8. If all such amounts have not been received one hundred eighty (180) days after the original due date thereof, a Small Claims suit will be filed against the owner(s) and all collection costs will be added to the total delinquent amount.
9. The Association will apply all payments in the following order: 1) Assessments 2) Late charges 3) Interest and, 4) Collection costs. Payments will be applied first to the oldest balances in each of these categories.
10. The Association shall charge a "returned check charge" of twenty-five dollars (**\$25.00**) for all checks returned as "non-negotiable", "insufficient funds," or any other reason.
11. The mailing address for overnight payment of assessments is The Management Trust, 160 Blue Ravine Road, Suite C, Folsom, CA 95630.
12. An owner(s) has the right to provide written notice of a secondary address and all correspondence and legal notices relating to assessments will be sent to both the last known primary and secondary address.
13. Any decision by the Association to initiate non-judicial foreclosure of a Lien resulting from delinquent amounts owed to the Association will follow applicable law including owner(s) right to request alternative dispute resolution, (**ADR**).
14. Any decision by the Association to file a Lien, file a Small Claim suit or initiate non-judicial foreclose on a lien, must be made by a majority of the Board.
15. The Board of Directors of the Association may revise this policy, either generally or on a case-by-case basis, if it finds good cause to do so.

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PROCEDURE FOR DISCIPLINARY HEARINGS

Reference: Section 13.06 of the CC&R's

Section 13.06 of the CC& R's allow the Association to enforce the Association rules and Governing Documents and to conduct a disciplinary hearing in the event of a violation of Association rules or Governing Documents by any Homeowner, Homeowner family member or Homeowner guests. The procedure for conducting a disciplinary hearing is summarized below and is being adopted as the Association policy for disciplinary hearings. Section 13.06 still applies in its entirety.

1. The decision to take disciplinary action shall be within the sole discretion of the Board. The definition of a violation is a single act or omission occurring on a single day. Similar violations on different days shall be considered an independent act or omission and justify cumulative disciplinary measures.
2. In the event of a violation of Association rules or Governing Documents by any Homeowner, Homeowner family member or Homeowner guests, the Board may enforce the obligation of all Homeowners, their family members and guests to follow Association rules and Governing Documents through the use of remedies deemed appropriate by the Board and available in law. These include the imposition of fines, legal action, or suspension of Homeowner's rights to use recreation Common Facilities.
3. No penalty or suspension of rights can be imposed until the Homeowner alleged to be in violation is given at least 15 days prior notice of the action and is given the opportunity for a hearing. This notice needs to include a specific description of the violation and a reference to the Association rules or Governing Documents that have been violated.
4. The Board must send a written notice of findings and disciplinary action imposed to the Homeowner within 5 days of the action.
5. Certain violations, as further defined in Section 13.06, do not require the Board to convene a hearing before taking immediate disciplinary action. In these instances, the Homeowner has the right to request a hearing and must inform the Board in writing within 5 days of the disciplinary action. If the Homeowner requests a hearing, one must be convened within 30 days of the Homeowner request.
6. All hearings are to be conducted in Executive Session with the Homeowner only and his/her legal counsel, if the Homeowner desires. If the Homeowner desires to have counsel present, the Board must be informed within 10 days prior to the hearing.

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ELECTION AND VOTING PROCEDURES POLICY

1. The BOD shall consist of five persons. Directors shall serve for two years with three elected in odd numbered years and two elected in even years. The election of Directors shall occur at the annual Homeowners meeting or if there is no annual meeting, then a special meeting held for the purpose of electing Directors.
2. The qualifications for Directors are that they be owners of lots within the HOA, that they have not been convicted of a crime that would preclude the HOA from obtaining the required fidelity bond insurance, and that they are in good standing with the Association in regard to assessments and special assessments, and in the event a payment plan is in place, be in compliance with the plan. A nominee cannot be disqualified for not being in good standing on assessments if that status requirement is not also applied to current Directors. Only one owner per lot is eligible to serve at any time. If an unqualified member is nominated and after the nominee has been provided the opportunity to engage in IDR, instructions will be given to the inspector of the election that any votes for that unqualified member shall not be counted.
3. Nominations for Directors can come from a nominating committee as defined by Section 7.04(a) of the By-Laws, from the floor at a meeting to elect Directors, from write-in candidates on a ballot, by petition as defined by Section 7.04(c) of the By-Laws, or nomination by any other manner.
4. No individual candidate for the BOD or other Homeowner shall have access to Association media, newsletters, web site or Association funds for the purpose of advocating a point of view related to the election/campaign. The BOD also shall not use Association media, newsletters, web site or Association funds for the purpose of endorsing or advancing the point of view of any individual candidate in an election/campaign. Association funds can be used for preparing and distributing ballots. If any candidate or other Homeowner desires to make a mailing to the Homeowners on their own for an election/campaign, an Association mailing list will be made available to them at no cost.
5. Common area meeting space will be made available, if requested, to any candidate or Homeowner who desires to advocate a point of view related to an election/campaign.
6. There are no requirements for receiving a ballot to vote in an election/campaign other than to be a member of the HOA or to have a general power of attorney for a member.
7. Members may vote by ballot or by authorizing a proxy and may only cast one vote per lot for each vacancy in an election or one vote per lot on ballots for amendments to the Association Governing Documents, assessment increases greater than 20% and special assessments, regardless of ownership interests. Cumulative voting is not allowed.
8. The voting period for an election shall commence no less than 30 days prior to the annual meeting for the election of Directors or no less than 30 days prior to the deadline for voting on amendments to the Association Governing Documents, assessment increases greater than 20% and special assessments. Ballots are to be mailed no less than 30 days prior to the annual meeting for the election of Directors or the deadline for voting on amendments to the Association Governing Documents, assessment increases greater than 20% and special assessments. Instructions shall be provided on the handling of the ballot and where and how to return.
9. Candidates receiving the highest number of votes up to the number of vacancies to be filled shall be elected. Voting on other matters is governed by the Association By-Laws.
10. The BOD shall appoint an independent inspector of the election. The inspector of the election can be a member or an independent third party as long as the third party is not currently under contract with the HOA for any compensable services. The inspector may not be the HOA's Management Company, or a

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current Director or nominee. An inspector will also be appointed for voting in regard to amendments to the Association Governing Documents, assessment increases greater than 20% and special assessments. The inspector may appoint and oversee additional persons to help count and tabulate votes provided that the persons are independent of the campaign or election, and in the case of an election not related to any nominee. Current Board members, nor nominees in the case of elections, cannot be appointed to count ballots.

11. Voting for the election of Directors must be done in secret and the secrecy requirement includes voting for amendments to the Association Governing Documents, assessment increases greater than 20% and special assessments. If voting by authorizing a proxy, a member must give instructions on how to vote to the proxy holder on a separate sheet of paper from the proxy itself, so that the secrecy of the instructions is maintained.
12. A voters list of all members will be created showing where ballots are to be mailed and the voting power of each lot.
13. The Association will mail to each member two envelopes along with the ballot and instructions for voting. To ensure the confidentiality of mailed ballots, the Association will use the following procedure. The ballot itself will be put in a sealed envelope. The sealed envelope will be put into a second envelope and mailed to the inspector of the election or to the inspector for voting on amendments to the Association Governing Documents, assessment increases greater than 20% or special assessments. The mailed envelope must have the member address, lot number and signature on it.
14. The inspector of elections or voting in the case of amendments to the Association Governing Documents, assessment increases greater than 20% and special assessments, will determine the number of voting members, receive ballots, determine when the poll closes, validate ballots received, validate proxies, validate that the quorum requirements for an election/campaign have been met, count the ballots, determine the results of the voting, announce the results to the members at a meeting and is responsible to ensure that the election and voting is done in confidentiality and fairness to all members. Once a ballot is received by the inspector, it is irrevocable.
15. Sealed ballots must be in the custody of the inspector until the tabulation of the votes and are not to be opened prior to the time and place at which the ballots are to be counted and tabulated. The ballots for an election must be counted at a properly noticed meeting, i.e., the annual meeting in the case of the election of Directors. The time and place for the counting and tabulation of ballots for other matters requiring an inspector will be determined and noticed by the BOD. All ballots must be counted by the inspector in public.
16. The results of the voting must be recorded in the minutes of the next Board meeting and must be publicized to the members within 15 days of voting.
17. Election material to include ballots, proxies, signed voter envelopes, voter list and candidate list will be maintained by the inspector of the election for one year or in the case of a BOD election until the next election, after the counting of ballots and noticing of the results. The election material will be available to members if requested in writing, for the purpose of a recount. The confidentiality of member voting must be maintained while the ballots are stored and any recount should also preserve the confidentiality of the vote. After one year the material will be transferred to the Association.
18. These elections and voting rules apply to elections and will also apply to any campaign where membership voting is required.
19. The quorum requirements that are stipulated in the By Laws will apply for any election/campaign. Ballots received by an inspector will count toward meeting the quorum requirements for any election/campaign. Proxies are not to be counted as a ballot and shall not be used in lieu of a ballot.

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Proxy holders will cast the members vote by secret ballot unless the proxy is revoked prior to receipt of the ballot by the inspector.

20. Association By Laws for elections and voting still apply if not specifically addressed by this policy and/or are not in conflict with current Civil Code. This policy applies to all actions where voting is required.
21. Notice to homeowners about upcoming Board election asking for nominations should include the qualifications for Directors as outlined in HOA election policy.
22. Ballots mailed to homeowners for amending Governing documents should include text of proposed amendments.
23. Candidate lists provided to the Membership should include the name and address of the nominees.
24. Required timeline for annual meeting election of Directors and all other campaigns that require voting:
 - 105 days prior to: Board provides notice of election, deadline for submitting Director nominations and where to submit nominations allowing 30 days to submit
 - 90 days prior to: Board selects an inspector of the election/campaign
 - 90 days prior to: Board sets annual meeting date
 - 60 days prior to: Membership is provided a voters list with address where ballot will be mailed and instructions to correct if not accurate
 - 60 days prior to: Membership is provided notice of how/where/when to return ballots and when/where meeting to count ballots is scheduled
 - 60 days prior to: Membership is provided list of candidates for an election
 - 30 days prior to: Membership is provided copy of election policy
 - 30 days prior to: Ballots are mailed to membership

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ELECTION/CAMPAIGN INSPECTOR DUTIES/RESPONSIBILITY

The inspector is responsible for overseeing an election/campaign for the purpose of guaranteeing confidentiality and fairness to all members and will perform any act as may be proper to conduct the election with the purpose in mind.

The inspector will perform his or her duties impartially, in good faith, to the best of his or her ability and as expeditiously as possible.

The inspector will use the Hacienda de Estrellas Homeowners Association election and voting procedures and policy, as approved by the BOD, as the basis for overseeing the election/campaign and ruling on any issues that may come up. This policy is intended to always be in compliance with current California Civil Code Governing Homeowner Associations.

The inspector:

- Will rule on any candidates for an election in regard to their qualification and will not count any votes received for a candidate not qualified, including nominations from the floor. Candidates can only be disqualified if they do not meet the requirements outlined in the HOA's election policy.
- Will determine the number of voting members including valid proxies if any.
- Will cause to be delivered to each member 30 days before an election/campaign a ballot and a copy of the HOA election/voting policy. If the voting policy is posted online notice can be made by providing on the ballot the website address with the phrase in at least 12-point type "The rules governing this election/voting may be found here:"
- Will determine when the poll for voting closes.
- Will receive all ballots and validate them. If two ballots are received from the same lot the inspector will contact the Homeowners to let them determine which ballot to count. If a determination cannot be made the inspector will request that a new ballot be submitted.
- Will validate all proxies and validate that the proxy was issued correctly.
- Will validate that the quorum requirement for elections/campaigns has been met using ballots received as counting toward the quorum requirement. If quorum requirements for a campaign have not been met at the time the poll is supposed to close, the inspector has the option of extending the time for voting or calling for an entirely new campaign. If quorum requirements for an election to the BOD have not been met at the time of the annual meeting or a special meeting called for the election of Directors the inspector has the option of delaying the vote counting at the meeting, giving time for members who have not already voted nor are present to attend the meeting or the inspector could rule that an entirely new election needs to occur.
- Will maintain sealed ballots until the tabulation of votes. The inspector can open the outer envelope of mailed ballots, take out the sealed ballot and check in Homeowners prior to the time set for opening and counting the ballots. If the ballot itself is in the outer envelope, the inspector will check in the Homeowner and place the ballot in a

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sealed envelope. If the inspector receives an envelope that has not been signed, the inspector has the option of contacting the Homeowner to get the outer envelope signed or not counting the ballot received as valid.

- Will count the ballots in public at a properly noticed meeting and can appoint and oversee additional persons to help count and tabulate votes provided that the persons are independent of the campaign or election. Current Board members, nor nominees in the case of elections, cannot be appointed to count ballots.
- Will determine the results of the voting, validate the results and notice the members as to the results.
- Will rule in the event of a tie vote. The inspector can extend the voting period if there is a tie in any campaign to allow for additional votes to be solicited. The inspector also has the option of ruling that an entirely new campaign take place. In the event of a tie in an election for members to the BOD, the inspector has the following options. The inspector can ask if one of the candidates would like to withdraw from the election. If neither candidate withdraws then the inspector can request a new vote to determine the outcome, from Homeowners present at the meeting if there is a quorum in attendance. If neither candidate withdraws nor there are enough Homeowners present to have a vote, then the inspector can determine that the vote for the Board position is not concluded and call for an entirely new election for the position.
- The election/campaign inspector will maintain control of all election material to include ballots, signed voter envelopes, voter list, proxies and candidate list for one year or in the case of a BOD election until the next election after the opening and counting of the ballots and noticing the results.

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ARC GUIDELINES FOR THE INSTALLATION OF SOLAR PANELS

The following guidelines are applicable for Homeowner installation of all types of solar panels. They are to be used by Homeowner's when soliciting bids from contractors and by the ARC when reviewing installation applications. The guidelines have been adopted recognizing the rights of Homeowner's who desire to install solar panels and the needs of the Association to maintain consistency in installations and minimize the impact solar panels have on the aesthetic look of the Community. Current Civil Code gives Homeowner's rights in regard to solar panel installations but also allows Association's the right to adopt guidelines imposing reasonable restrictions.

- Installing panels on a street facing roof is discouraged. Where the proposed location for the panels is street facing, the ARC will propose another location even if the new location decreases the efficiency of the system within the limits that Civil Code allows. The ARC may also seek the opinion of another solar panel contractor in determining a suitable location.
- Some lots are situated such that trellis mounted systems are more desirable and these type of installations are encouraged. The trellis should be designed to minimize the view of the trellis and solar equipment. Piping should be routed to minimize the visibility from adjacent properties. Piping should be painted to blend with the structure. Panels and piping should be installed with minimum slope and maximum recess to minimize visibility.

PHOTO VOLTAIC INSTALLATIONS:

- Photo voltaic panels should be black in color.
- Roof mounted panels should be laid out in a symmetrical rectangle or square pattern and should have the perimeter squared off with filler material to eliminate asymmetrical edges.
- Plumbing vents should be painted black when in between panels and should have gaps filled.
- Conduit abutting panels should be painted black and conduit not against panels should be painted to match roof color.
- Conduit going up a wall should be installed tight together and painted to match adjacent surface.
- Conduit should be tight against drain spouts when a drain spout is on the wall being used.
- Conduit must go through eaves not around.
- Conduit should penetrate the roof, to the extent possible, and be contained within the structure. Conduit that cannot be concealed, should be painted to blend with the color of the adjacent surface.
- Conduit will have single routing from panels and run tight against the panels to the point where it penetrates the roof.
- Conduit must not run across the roof faces or over ridges, valleys or hips but should go through the roof and be concealed below the roof.
- Filler strips should be used between panels to fill any gaps and hide the roof.
- Photo voltaic panels should have end caps where an end is visible.
- Mounting brackets should be painted to match panel color or roof as appropriate.

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- Panels are to be mounted on the same plane as the roof slope. The installation profile should be as level as practical.
- Panels should not project above the roof more than 7 inches.
- Screening with trees will be required where appropriate.

SOLAR POOL HEATING INSTALLATIONS:

- Solar panels should be black in color. Colored panels matching the roof color can be used if a guarantee can be made by the manufacturer that the panels will not fade significantly.
- Roof mounted panels should be laid out in a symmetrical rectangle or square pattern and should have the perimeter squared off with filler material to eliminate asymmetrical edges.
- Plumbing vents should be painted black or the color of the solar panel when in between panels and should have gaps filled.
- Piping must be tight against roof panels and match the color of the panels.
- Supply and return pipes should be on the same side avoiding two different routings.
- Pipe's going up a wall should be installed tight together and painted to match adjacent surface.
- Piping should be tight against drain spouts when a drain spout is on the wall being used.
- Piping must go through eaves not around.
- Piping should penetrate the roof, to the extent possible, and be contained within the structure. Piping that cannot be concealed, should be painted to blend with the color of the adjacent surface.
- Pipes must run tight against the panels to the point where they penetrate the roof.
- Pipes must not run across roof faces or over ridges, valleys or hips but should go through the roof and be concealed below the roof.
- Panels should fit tight together or filler strips should be used between panels to fill any gaps and hide the roof.
- Mounting brackets should be painted to match panel color or roof as appropriate.
- Panels are to be mounted on the same plane as the roof slope. The installation profile should be as level as practical.
- Panels should not project above the roof more than 7 inches.
- Screening with trees will be required where appropriate.

APPLICATIONS:

- Submit two sets of scaled dimensioned roof plans showing the entire roof including hips valleys and ridges.
- Show proposed panel locations on the roof including the dimensions of panels and setbacks from edge of roof.
- Show routing of piping/conduit on roof.
- Show where piping/conduit penetrates eaves and roof.
- Show all vents/obstacles on roof that will be in between the panels.
- Submit photos of roof, where practical.
- Provide drawing of wall were pipes/conduit will go up wall to roof.
- Submit photos of wall.
- Trellis mounted installations require a plot plan and exact location of trellis.

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- Trellis mounted installations require size of trellis and slope to be shown on plot plan.
- Include the manufacturer's brochure.
- Arrange with the ARC to physically visit and inspect each site. **It is recommended that a site visit take place prior to signing a contract and submitting an application. It is also desirable to have the contractor present at this time.**
- Include installation deposit with application of \$250 which will be returned after installation that meets ARC approval is completed.

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ARC GUIDELINES

1. The ARC will require all applications from Homeowners to be hand delivered to the ARC Chairman. Email applications will be accepted.
2. Upon receipt of an application, ARC Chairman will review the application to determine if sufficient information and/or detail have been provided so that the ARC can review the application and make an informed decision. If the application is lacking in any detail that the Chairman determines would be necessary for the review, the Chairman will call the homeowner and advise them that they are required to attend the ARC meeting. The homeowner is to be told that if they do not attend, their application will be tabled and reviewed at the next ARC meeting and only if the homeowner is in attendance.
3. The ARC will schedule a meeting within 30 days of receiving an application for the purpose of reviewing and approving/disapproving the application. At the discretion of the ARC Chairman some applications which are very straightforward requests and which would not require discussion by the full ARC may be approved by an ARC visit to the homeowner. Only applications that would be automatically approved qualify. For these types of applications, the ARC Chairman along with another ARC member may visit the homeowner, look at what is being requested and in so doing approve the application, without need for an ARC meeting or homeowner presence at an ARC meeting. A single ARC member may not approve any application with a visit to the homeowner. A record of the approval will still be necessary as required by the CC&R's.
4. The ARC will carefully follow the intent of the CC&R's in reviewing an application.
5. The ARC will consider what is best for the Community as to the appearance and practicality of an improvement request, and whether there is any negative impact to the Community. The good of the community along with the CC&R's will be considered of primary importance rather than applicant desires when there is a conflict.
6. The ARC will require final drawings and preferably a visual representation for structures on all requests before final approval/disapproval is given.
7. The ARC will require a plot plan for all applications that involve new or relocated structures of any kind. The ARC will visit the lot where the structure is to be located to determine the visual impact of the structure to the surrounding lots and to the Community.
8. The ARC will only grant conditional approval for variances within setback requirements, if County approval is required. A second meeting of the ARC will be required to grant final approval.
9. The ARC will set a completion date for all approvals and will follow up to make sure the project is completed on time and consistent with the approval.
10. The ARC will inspect all improvements where an improvement deposit was required, prior to authorizing the return of the deposit, to make sure no Association property has been damaged and that roads and culverts have been cleaned of debris or dirt as a result of the improvement. The inspection will also include verifying that the improvement was per the approved application.
11. The ARC will inform an applicant in writing when an application is not approved and will include the reasons why the application was denied.

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12. The ARC will write their minutes to accurately reflect in detail what was agreed upon to avoid any misinterpretation of what has actually been approved or not approved.
13. The ARC minutes will be written and sent to the Board within three days following the ARC meeting. The minutes will be read at the next Board meeting, following the ARC meeting and will be published in the Board minutes.
14. The ARC will assume responsibility for CC&R violations that are within their scope of responsibility and will make an effort to have the violations corrected before turning over to the Board.
15. The ARC will use the ARC solar panel guidelines in reviewing applications for solar panel installations and adhere to the intent of the guidelines including a site visit prior to granting an approval.
16. The ARC will use a Board member, if available; to meet quorum requirements for ARC meetings if attending ARC members are not sufficient to provide a quorum.
17. Satellite dish approval from the ARC can be accomplished with the homeowner calling the ARC Chairman or any Board member and requesting that the Chairman or a Board member be available to meet with the homeowner and the installer on the date and at the time of installation. The Chairman or Board member can agree to the location taking into consideration that dishes located at the front of the house or in full view of the street are not desirable. The location of the dish should minimize its visibility taking into consideration the direction of the satellite signal.
18. The CC&R's allow for detached garages to be connected to the house with a breezeway. The width of the breezeway should be no wider than 10'. A detached garage located more than 10' from the house would not fit with existing house/garage design approvals.
19. Section 6.01 of the CC&R's states that outbuildings shall only be approved by the ARC if they are consistent in design, color and appearance with the principal residence. The Board has interpreted this to mean that the sides and the roof of an outbuilding will be of the same material and color as the principal residence. The ARC shall follow the Board's interpretation in approving applications for outbuildings.
20. Street facing garage doors should be no more than 10' in height.
21. Due to the wording of Section 8.04 of the CC&R's, such as "to preserve the rural and wooded atmosphere of our community", "to prevent deforestation", "some species of trees" and "the removal of any tree", the Board has interpreted this Section to include all trees and has restricted the removal of any tree without good cause. This restriction has been in place, but the Board is restating the restriction for insertion into the ARC Guidelines. The restriction applies to the removal of any species of tree 8" or greater in diameter measured two feet above the ground. No tree is to be approved to be removed without good cause supported by an arborist recommendation. The arborist should be a certified arborist and independent of any tree cutting business. The need for an arborist recommendation is to eliminate subjectivity in the determination of good cause. Good cause is not meant to include removal just because the homeowner wants to. It is recognized that at times it is obvious that a tree is in imminent danger of falling and to mitigate the potential for harm to homeowners or damage to homes, the ARC, after looking at the tree and determining that it is in imminent danger of falling, can approve removal without an arborist report. Dead trees should also be approved for removal without an arborist report. It is also recognized that at times homeowners have concerns

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about tree limbs hanging close to their home or over their roof. Tree trimming to mitigate the potential for damage does not require ARC approval unless the homeowner intends to trim greater than 50% of the tree. In this situation an arborist report supporting removal of greater than 50% of the tree is required for approval. Thinning of trees to promote the grow and health of surrounding trees can be approved with a supporting arborist report indicating good cause.

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RULE FOR USE OF GOLF CARTS

Reference: Sections 3.07(a), 8.03 and 8.11(h) of the CC&R's

The Board is adopting the following rules to allow the use of battery run golf carts on the Common area HOA streets.

1. The golf cart must be battery operated.
2. The driver of any golf cart must have a valid California drivers license.
3. The owner of the golf cart must have liability insurance that covers the golf cart.
4. Golf carts should be driven on the far-right side of all HOA streets, and must yield to motor vehicles.
5. No person shall operate a golf cart upon any street in Hacienda De Estrellas at a speed greater than 20 miles per hour.
6. No person shall operate a golf cart upon a street at a speed greater than is reasonable or prudent having due regard for weather, visibility, other traffic, and in no event at a speed which endangers the safety of persons or property.
7. To be driven after daylight golf carts must have visible front and rear lighting.
8. The driver of a golf cart approaching a stop sign at the entrance to an intersection in Hacienda De Estrellas shall stop at a limit line, if marked, otherwise before entering the near side of the intersection.
9. The driver of a golf cart approaching an intersection shall yield the right-of-way to any vehicle or golf cart, which has already entered the intersection from a different street.
10. When a vehicle or golf cart enters an intersection from different streets at the same time, the driver of the vehicle or golf cart on the left shall yield the right-of-way to the vehicle or golf cart on the immediate right.
11. No other recreational types, other than motor homes, are allowed to operate on HOA streets and are specifically restricted.
12. The fine for a violation of any of the above rules is \$50 per incident.

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HOMEOWNER COMPLAINT PROCESS

Homeowner makes a complaint to a Board member or the entire Board

Complaint can be verbal, written letter or via email

Complaint cannot be anonymous

Board evaluates the complaint and decides on the appropriate action

Some judgment is usually appropriate on what action to take

Some complaints may already be in process of resolution

The Board may determine that a complaint is of a nature where following up is not appropriate

The Board may decide that a complaint is a homeowner-to-homeowner issue and does not affect the community

Board will act on valid complaints by contacting the Homeowner in violation of the CC&R's/Rules to discuss the complaint

Board's judgment is that most Homeowners would prefer someone talking to them instead of an impersonal letter

Solutions and compromises are better obtained with a discussion

Homeowner that raised the issue is not disclosed to Homeowner in violation of CC&R's/Rules

A discussion may not always be the best solution, in which case a letter will be sent

Closure is made with Homeowner who initiated the complaint

Homeowner who made complaint deserves closure

Degree of explanation should be appropriate without compromising

Homeowner discussions or action in regard to CC&R/Rule violations

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ARC Guidelines for Lot Maintenance

In order to help preserve the appearance, desirability, and value of the financial investment of the homes in our neighborhood the Board of Directors and the Architectural Review Committee has developed a set of guidelines regarding lot maintenance. These guidelines provide a uniform and consistent measurement for the ARC, to use, when necessary, to address necessary maintenance of lots within the Hacienda de Estrellas community.

Each owner is responsible for the normal upkeep of their lots, which includes, but is not limited to: watering, weeding, mowing, pest control, removal of all dead vegetation and/or trash and the routine pruning and cutting of shrubs/trees and other flora, in order to maintain a well-kept appearance and prevent any overgrowth onto pathways, streets and common areas.

The ARC will issue a written notification to homeowners considered to be in violation of these rules. A Homeowner who fails to correct the issues stated in the notification will be in violation of the CC&Rs (Section 7.02). The Homeowner will then be referred to the Board for a hearing.

The following is a list of the requirements for yard care. It is not meant to be an exhaustive list of all possible conditions, which could apply to proper yard care. Those will be addressed on a case by-case basis.

Section 5.01(a) and (b) of the CC&R's require any alteration to existing landscaping to be approved by the ARC.

Non-Lawn Areas

Ground Cover is defined as natural materials such as rock, bark or other natural materials used to cover bare soil. When plastic or other weed barrier material is used under these materials the barrier shall not be exposed. Bare Soil shall be free of all weeds. Care shall be taken to prevent any soil erosion. Any runoff of rocks, pebbles, soil or leaves into the street or culverts shall be removed.

Lawn and Grass Care

Lawn shall be cut and maintained.

1. Lawns must be mowed on a regular basis. Lawn height not to exceed four inches.
2. Lawns must be watered on a regular basis sufficient to maintain health and green color. This is weather and temperature dependent.
3. Lawns are to be kept free of weeds.
4. Bare spots in lawn need to be replaced.

Shrub and Plant Care

Shrubs shall be pruned and maintained.

1. Dead shrubs and plants shall be removed.

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2. Dead wood and branches in shrubs need to be removed.
3. Mature shrubs need to be pruned to a consistent level and dead or dying materials shall be removed.
4. All shrubs shall be trimmed back from the street and/or curb.
5. Plants and shrubbery should be watered to maintain a healthy appearance.
6. Planter areas to be kept free of weeds.
7. Area around fire hydrants to be kept clear of shrubbery.

Tree Care

Trees shall be pruned and maintained.

1. Dead trees and limbs shall be removed.
2. Mature trees need to be pruned as needed to remove dead and dying material and to be fire safe.
3. Branches encroaching on streets should be pruned back from the curb or street to allow automobiles to pass safely and park on the streets. Twelve feet of vertical height is the minimum requirement.

Driveways, Walkways and Streets

Driveways, walkways, and curb area on all sides of lot should be clear of all leaves, dirt and other debris.

Drainage Ditches

All drainage courses, ditches and swales shall be free and clear of all vegetation and any other obstructions.

Raw Land

Defined as any area with no improvements. These areas are covered by the Fire Hazard Rule.